

25STCV02493 25STCV02493

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV02493 Hearing Date: July 8, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV02493

BLANCA

AREVALO vs COUNTY OF LOS ANGELES, et al.

July 8, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR PITCHESS DISCOVERY OF PEACE OFFICER PERSONNEL RECORDS.

RULING:

The hearing on the matter is continued

to July 31, 2026, at 10:30 a.m., in Department 311, for an in camera inspection.

At the hearing, Defendant COUNTY OF LOS ANGELES shall bring all potentially relevant documents to the in camera inspection records requested in the subject Motion as to which Pitchess procedure is applicable, excluding only those subject to properly supported discovery objections including privilege logs regarding attorney-client privilege, work product, and privacy. (Cf., *City of Vallejo v. Superior Court* (2025) 112 Cal.App.5th 565, 579 [“pursuant to a stipulation by the parties as to how to move forward procedurally—the superior court heard and ruled on a Pitchess motion ... with the amended privilege log the police department had provided....”].)

Additionally, Defendant shall at that time bring a completed log listing all the documents to be reviewed at the in camera inspection, for inclusion in the Court record. (See *People v. Mooc* (2001) 26 Cal.4th 1216, 1228.)

Only the party authorized to claim the privilege is allowed into the in camera inspection. (See Evid. Code § 915, subd. (b); *Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1086.)

The Court finds that the Pitchess motion sufficiently describes the record or information types sought, and includes a declaration showing good cause for each type, including the materiality and a reasonable belief that the governmental agency has the information or records.

I. BACKGROUND

On January 29, 2025, BLANCA AREVALO (Plaintiff) filed a Complaint against COUNTY OF LOS ANGELES, LOS ANGELES COUNTY SHERIFF'S DEPARTMENT, ROBERT LUNA, HOLLY FRANCISCO, JACK EWELL, and THOMAS GIANDOMENICO (Defendants).

On May 22, 2025, Plaintiff filed a First Amended Complaint (FAC) for:

RACIAL DISCRIMINATION IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(A));

(2)

SEX DISCRIMINATION IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(A));

(3)

HOSTILE WORK ENVIRONMENT AND WORKPLACE HARASSMENT IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(J)); and

(4)

FAILURE TO TAKE CORRECTIVE ACTION IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(K)).

Plaintiff alleges that, “Plaintiff has been harassed, discriminated against, and forced to endure a racist and sexist hostile work environment because of Defendant LASD's apparent want to maintain the white-male status quo.” (FAC, ¶ 1.)

On April 30, 2026, Plaintiff filed the Motion for Pitchess Discovery of Peace Officer Personnel Records.

Defendants' Opposition raises several issues, including that some requested documents are outside the scope of the Pitchess procedure, some requests are in overbroad categories, and good cause for production is not shown.

II.

LEGAL STANDARD

Under Evidence Code sections 1043 and 1046, complainants seeking discovery of peace officers' personnel records, or records regarding a complaint, must file a motion satisfying the statutory requirements, and disclosure is permitted only upon a showing of good cause. (*Santa Ana Police Officers Assn. v. City of Santa Ana* (2025) 109 Cal.App.5th 296, 309.)

The law mandates an in camera inspection for Pitchess matters, and requires ordering excluded (1) any information contained in the personnel files of little or no practical benefit, (2) complaints over five

years before the incidents, and (3) and conclusions of investigating officers in the context of any criminal proceedings. (See *Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1087 (Haggerty).) The five-year limitation of Evidence Code section 1045, providing for disclosure of complaints, is not an absolute bar, where the information is pertinent. (*Abatti v. Superior Court* (2003) 112 Cal.App.4th 39, 60.)

Penal Code sections 832.7

and 832.8 do not automatically apply to all information contained in an employer's file, but instead make confidential and protect from disclosure only information specifically enumerated in section 832.8. (*Ibarra v. Superior Court* (2013) 217 Cal.App.4th 695, 704.) Where a Pitchess motion does not apply to the information sought, the proper procedure is to demand an inspection of the information pursuant to Code of Civil Procedure section 2031.030. (*Ibid.*, at p. 706].)

Section 832.7 creates

three categories of confidential documents: 1) Personnel records of peace officers and custodial officers, including discipline and complaints; 2) state or local records held pursuant to Penal Code section 832.5 regarding investigating complaints from the public against personnel; and 3) information obtained from those records. (*City of Vallejo v. Superior Court* (2025) 112 Cal.App.5th 565, 585-586.)

After an in camera

inspection, courts must order the disclosure of those peace officer personnel records that are relevant to the subject matter of the litigation. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) "The court in each case must make an initial finding that the requested information is material, and after reviewing the information at an in camera hearing, that the documents are relevant within the meaning of section 1045, subdivision (a) and that the disclosure would not fall within any of the exceptions set forth in the statute." (*Haggerty*, supra 117 Cal.App.4th at p. 1092.)

As to Pitchess motions, in civil proceedings, an investigating officer's conclusions can be discoverable, depending on relevance or benefit. (*Id.*, pp. 1088-1089 [remanding for redacting portions of an Internal Affairs report reflecting solely the investigating officer's "conclusions," defined as "thought processes of, and factual inferences and

deductions drawn by, an officer investigating a complaint, concerning such matters as the credibility of witnesses or the significance, strength, or lack of evidence.”].)

Orders to exclude material may include redacted portions of documents. (Id., p. 1089 [“trial court to redact those portions of the Internal Affairs report reflecting solely the investigating officer’s ‘conclusions....’”].)

Additionally, courts generally do not order production of verbatim police reports re citizen complaints and witnesses, if plaintiffs can obtain the information from the witnesses, after being given just the names, addresses and telephone numbers of witnesses, and incident dates, that the Court observes in the personnel files. (City of Hemet v.

Superior Court (1995) 37 Cal.App.4th 1411, 1423; Chambers v. Appellate Div. of Superior Court (2007) 42 Cal.4th 674, 679.) However, disclosure is not necessarily limited to witness contact information, if there is direct relevance of investigation (e.g., Internal Affairs reports), and the requested discovery otherwise meets statutory criteria. (Haggerty, supra, 117

Cal.App.4th at p. 1090.) As to Pitchess matters, “the practice of disclosing only the name of the complainant and contact information must yield to the requirement of providing sufficient information to prepare for a fair trial.” (Alvarez v. Superior Court (2004) 117 Cal.App.4th 1107, 1112 [“petitioner’s ability to investigate ... has been stymied by ... refusal to cooperate.”].)

As to Pitchess matters, disclosure of officer personnel records under Penal Code section 832.7 is not limited by the official information privilege. (Berkeley Police Assn. v. City of Berkeley (2008) 167 Cal.App.4th 385, 400.)

“[I]f documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection ‘shall’ be supplied.” (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813.)

A privacy objection is not ripe for adjudication before a court where there is no factual basis for ruling, such as respondents’ identifying the documents withheld in a privilege log or elsewhere. (Connecticut Indem. Co.

v. Superior Court (2000) 23 Cal.4th 807, 818.)

Trial judges have broad discretion in ruling upon Pitchess matters. (Haggerty, supra, 117 Cal.App.4th at p. 1086.)

III.

ANALYSIS

Plaintiff seeks an in-camera review and disclosures of specified peace officer personnel records and related materials relevant to Plaintiff's FAC, including the following discovery requests:

SROG

28 IDENTIFY all COUNTY and/or LASD investigations into Defendants Ewell and/or Giandomenico for workplace harassment, including racial and sex discrimination.

SROG

29 IDENTIFY all actions taken by the COUNTY and/or LASD in response to Plaintiff's allegations in the Amended Complaint for Damages in this matter.

SROG

30 IDENTIFY all training programs Defendants Ewell and/or Giandomenico attended to address workplace harassment, including racial and sex discrimination, and include the dates of attendance for each.

RFP

46 Please provide all complaints against Jack Ewell, including all entries in his personnel file, for maintaining a hostile work environment, including racial and sex discrimination.

RFP

47 Please provide all complaints against Thomas Giandomenico, including all entries in his personnel file, for maintaining a hostile work environment, including racial and sex discrimination.

RFP

48 Please provide all documents Jack Ewell prepared relating to Plaintiff,

including all responses to the allegations in the Amended Complaint for Damages in this matter, from May 1, 2022, to the present.

RFP

49 Please provide all documents prepared by Thomas Giandomenico relating to Plaintiff, including all responses to the allegations in the Amended Complaint for Damages in this matter, from May 1, 2022, to the present.

RFP

50 Please provide all communications between Jack Ewell, and/or Thomas Giandomenico, and/or any County or LASD personnel related to Plaintiff from May 1, 2022, to the present.

RFP

51 Please provide all disciplinary records (including counseling memos, warnings, suspensions, or investigations) involving Jack Ewell and/or Thomas Giandomenico, regardless of whether they resulted in disciplinary action, from 2018 to the present.

RFP

52 Please provide all documents relating to, and/or that constitute the County's and/or LASD's Investigation into the allegations in the Amended Complaint for Damages in this matter, including all documents maintained by the LASD Intake Unit, Internal Affairs, County Equity Oversight Panel, Equity Investigation Unit, and all other investigating offices.

RFP

53 Please provide all communications between LASD management and the County Equity Oversight Panel, County Counsel, or any outside counsel relating to Plaintiff or allegations in the Amended Complaint for Damages in this matter.

RFP

54 Please provide all LASD (Including Internal Affairs and EEO) documents showing complaints of workplace harassment, including racial and/or sex discrimination from May 1, 2022, to the present.

RFP

58 Please provide all documents, including sign-in sheets, attendance records, certificates of completion, for LASD training programs to address workplace harassment, including racial and sex discrimination or retaliation.

RFP

61 Please provide all communications to and from the Sheriff, Undersheriff or Assistant Sheriff relating to Plaintiff, and/or Aero Bureau staffing issues from May 1, 2022, to the present.

RFP

63 Please provide all documents and/or video recordings relating to any meeting, debriefing, or gathering where Plaintiff was discussed by name or title from May 1, 2022, to the present.

RFP

64 Please provide all LASD equity complaints and tracking summaries or databases showing case numbers, findings, and outcomes from May 1, 2022, to the present.

RFP

65 Please provide all documents relating to any investigation into retaliation against Plaintiff following her complaints of workplace harassment or EEO filings from May 1, 2022, to the present.

RFP

71 Please provide all e-HR reports and/or other LASD documents that specify what positions are to be staffed at Aero Bureau from May 1, 2022, to the present.

(Motion, pp. 12-13.)

Defendants summarize their arguments, at Opposition page 2, as follows: "(1) many of Plaintiffs requests do not seek "personnel records" and are not properly brought as Pitchess requests, (2) the categories of documents are overbroad, and (3) the declaration submitted in support of discovery is insufficient in that it fails to establish good cause and materiality for the production of the requested documents." Also, Defendants concede that request numbers 48, 49, 53, and 71 are not within the Pitchess motion procedure. (Opposition, p. 5.) Additionally, they indicate that objections apply, including privilege and privacy. (Opposition, p. 11 (Jake Hertzberg Declaration), ¶ 5 ("objections on the grounds of overbreadth, relevance, undue burden, the privacy rights of non-party peace officers, the attorney-client privilege, and the attorney work-product doctrine.").)

Procedurally, a Pitchess motion must describe the record or information types sought with sufficient specificity, and include affidavits showing good cause, including the materiality and a reasonable belief that the governmental agency has the information or records. (*Garcia v. Superior Court* (2007) 42 Cal.4th 63, 70.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a Pitchess motion. (*Haggerty*, supra 117 Cal.App.4th at p. 1086.)

As to a Pitchess motion, the two-part showing of good cause for discovery is a relatively low threshold. (*Zanone v. City of Whittier* (2008) 162 Cal.App.4th 174, 187 [in a case re FEHA discrimination, peace officer's memorandum was not a "personnel record" failing within the scope of a Pitchess motion]. Cf. *Riske v. Superior Court* (2016) 6 Cal.App.5th 647, 664 [regarding alleged employer retaliation for whistleblowing, employee "established good cause to obtain an in camera review of the personnel records—the TEAMS reports and last two performance evaluations—he requested. Whether and to what extent any information in any of the identified officers' personnel files is thereafter discoverable is for the superior court to determine...."].)

"[T]o obtain in-chambers review a defendant need only demonstrate that the scenario of alleged officer misconduct could or might have occurred." (*Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1016.) Only documentation of past misconduct that is similar to misconduct allegedly committed by defendant in the pending litigation is relevant and subject to discovery. (*California Highway Patrol v. Superior Court* (2000) 84 Cal.App.4th 1010, 1021.) "A showing of good cause is measured by 'relatively relaxed standards' that serve to 'insure the production' for trial court review of 'all potentially relevant documents.'" (*Becerrada v. Superior Court* (2005) 131 Cal.App.4th 409, 413.) The "'relatively low threshold for discovery embodied in section 1043 is offset ... by section 1045's protective provisions....'" (*Chambers v. Appellate Div. Of Superior Court* (2007) 42 Cal.4th 673, 680.) However, "Warrick permits courts to apply common sense in determining what is plausible, and to make determinations based on a reasonable and realistic assessment of the facts and allegations." (*People v. Thompson*

(2006) 141 Cal.App.4th 1312, 1318-1319.)

A trial court is to conclude whether a Pitchess motion shows good cause for discovery of relevant evidence in an officer's personnel files, and a custodian is to bring all potentially relevant documents to the in camera inspection, and may omit only those that are clearly irrelevant. (Fletcher v. Superior Court (2002) 100 Cal.App.4th 386, 405.)

The Court finds that the Motion sufficiently describes the record or information types sought and includes an affidavit showing good cause for each type, including the materiality and a reasonable belief that Los Angeles County has the information or records. (Motion, pp. 25-27 (Arash Aramesh Declaration).)

IV.

CONCLUSION

This matter is continued for the prescribed in camera inspection.

Plaintiff to give notice.